

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Crl. Appeal No.47572 of 2023.

Jamroz Khan vs The State etc.

Crl. Revision No.60819 of 2023

Dil Muhammad vs The State, etc.

JUDGMENT

Date of hearing	16.09.2025.
Accused/appellant by:	Mr. Muhammad Aurangzeb Khan Daha and Ms. Iram Sohail, Advocates.
State by:	Mr. Waqas Anwar, Deputy Prosecutor General.
Complainant:	In person.

MUHAMMAD AMJAD RAFIQ. J:- Trial in crime report No.1101 dated 22.10.2020, under Sections 302, 109 of the Pakistan Penal Code 1860 (PPC), Police Station Ferozwala, District Sheikhpura against ***Jamroz Khan, accused/appellant*** was concluded by learned Additional Sessions Judge, Ferozwala, vide judgment dated 05.07.2023, and he was convicted and sentenced to imprisonment for life under Section 302(b) PPC with payment of Rs.1,000,000/- (Ten lacs) to the legal heirs of deceased as compensation under section 544-A of Code of Criminal Procedure 1898 (Cr.P.C.) and in case of default in payment of compensation, further undergo six months simple imprisonment. Benefit of section 382-B Cr.P.C. was also extended in favour of the accused/appellant.

The titled appeal preferred by the accused/appellant Jamroz Khan to assail his above conviction and sentence and criminal revision filed by the complainant for enhancement of sentence are being decided through this single judgment.

2. As per prosecution story recorded in the FIR, the accused Jamroz Khan contracted marriage with Haleema Bibi, aged 19/20 years daughter of the complainant 7/8 months back, allegedly during the subsistence of earlier marriage and concealed this fact from her, but it later stood disclosed. The accused had been keeping both wives in one house, which led to frequent altercations between Haleema Bibi and the accused. Eventually, after a quarrel with her husband, when she returned to her parental home, he managed to take her back after few days. The spouses continued to quarrel over past issues, and upon knowing this, the complainant, along with Tuti Khan and Gull Sher, went to the accused's house on 22.10.2020 at about 1:00 p.m. to resolve the matter. However, Haleema Bibi was not ready to live with the accused under any circumstances. At this, the accused became furious, took out a pistol from his room, raised *lalkara* that if she could not live with him, then she would not live with anyone else, and fired at Haleema Bibi. The bullet struck her forehead, causing her to fall and succumb to the injury. After firing, the accused fled away from his house. It was further alleged that the accused committed the act on the instigation of his brother, Shehzad.

3. Upon registration of the FIR, the police initiated and completed the investigation, culminating in the submission of a challan/report under Section 173 of the Cr.P.C. before the trial court. The accused was formally charge-sheeted for the offence alleged against him. Upon framing of the charge, accused denied the allegations, pleaded innocence, and opted to face trial. In support of its case, the prosecution produced the evidence, on close whereof the accused/appellant was examined under Section 342 Cr.P.C., wherein he denied the allegations and claimed that Haleema Bibi had committed suicide. However, the accused opted not to appear as witness in his own defence under Section 340(2) Cr.P.C., however he produced Ex.DA & EX.DB during the statement of CW-1 and the trial on conclusion, resulted in the conviction and sentence as forecited.

4. Heard. Record perused.

5. To prove the murder of Haleema Bibi, the prosecution has produced her father Dil Muhammad, complainant PW-7 and Tuti Khan PW-8, the paternal cousin of the complainant. Admittedly, both witnesses were not the residents of the house where the occurrence took place. Their presence at the place of occurrence is seriously doubted and the facts which culminated into building of such opinion appeared in their depositions during cross-examination. PW-7 being father while responding to motive of this case claimed that Haleema Bibi was taken back forcibly by the accused from his house two days prior to the occurrence but admitted that he did not report the matter to the police despite the fact that before marriage he had no earlier acquaintance with accused/appellant. His daily routine was to start work at 9.00 p.m. in Mandi and return back home in the morning. He did not specifically tell the purpose of his visit to the house of her daughter when no urgency was reported to him. Time of occurrence he claimed as 1.00 p.m. He further claimed the he alone went to police station for reporting the crime and took the police back to the place of occurrence where the dead body was lying. Almost on the same lines PW-8 deposed before the Court.

The above facts stand contradicted by two aspects appeared in this case. Firstly, accused/appellant himself took the dead body of Haleema to the THQ Hospital Ferozwala at about 11:40 a.m. on the same day with the stance that Haleema Bibi had committed a suicide as conceded by CW-1 Dr. Muhammad Zaheer-ud-Alvi, but on suspecting that death seems homicidal, he informed the police on 15 Police emergency call, but by the time accused/appellant took the dead body away from the hospital. Reaching of dead body to THQ hospital at 11:40 was also confirmed by Shah Faisal, investigating officer PW-9 during his cross examination as under;

“It is correct that when the doctor of THQ hospital, Ferozewala informed me then it came to my

knowledge that dead-body of deceased was first brought to THQ Hospital, Ferozewala.”

This situation clearly indicates that accused/appellant did not escape his duty to attend his wife nor opted to run away from the place of occurrence in fear of crime committed by him, rather with a natural human behavior, he took Haleema Bibi to the hospital and tried to justify his response to an event happened in his house. Further claim of CW-1 that on suspecting homicidal injury he called the police at 15 but accused/husband took the dead body away is without any proof. Defence in order to negate such version of CW-1 has brought on record the OPD ticket as Ex. DA, which carries the fact of receiving Haleema Bibi as dead. What it mentions is as follows;

Pt received dead at 11:40 am on 22/10/2020. Brought by his husband who says she shot herself but highly doubtful since entry wound of bullet on centre of forehead which suggests homicide. (to be confirmed on autopsy). Police informed on 15 call at 11:52 a.m. 22.10.2022

Ex. DB is also carrying a note “Received dead”. There is no other document which could suggest that dead body was taken away by the accused/appellant before arrival of police. Thus, under the principle of *res ipsa loquitur* (the thing speaks for itself) a witness may tell a lie but document does not, the CW-1 has not stated the whole truth. Even otherwise once the dead body was received by the hospital, its misplacement is a criminal act to be reported by the concerned staff immediately, which has not been done in this case.

6. This difference in timelines of death of deceased makes the case of prosecution doubtful and favours the defence. Doctor conducted the postmortem examination of dead body at 9:45 p.m. (same day) and mentioned the probable duration between death and postmortem examination as 12 to 24 hours which in no case coincide with the time of death at 1:00 p.m. Thus, absence of witnesses at the crime scene is apparent. Even otherwise being chance witnesses their statements under

the law are required to have corroboration, plausible explanation, consistent testimony coupled with behaviour and demeanour, lack of motive and bias, otherwise it cannot be the sole basis of conviction. It has been observed that Tuti Khan PW-8 was informed by the complainant PW-7 that her daughter had a quarrel with her husband, and they are to go for settlement, but both the witnesses did not disclose the source of such quarrel nor produced any call detail record in this respect. Further it was the first time Tuti Khan had visited the house of accused as conceded by him during cross examination, therefore, his relation with complainant could not be established because it is not expected that cousin of the complainant had not participated in the marriage of his daughter 8/9 months before. Further claim of complainant and Tuti Khan that dead body was first taken to the police station and then to the hospital stands belied by the statement of Shah Faisal, investigating officer PW-9 who transported it from place of occurrence to the Hospital. Therefore, prosecution could not clarify the fact that if the accused had committed the murder in the presence of PWs, then how the dead body was taken by him to THQ hospital before CW-1 and then how dead body was reached back to place of occurrence for his again transportation to Hospital. Thus, prosecution has restructured the case with dishonest intention by twisting the real facts in order to book the accused/appellant. It is trite that when prosecution has no evidence on ocular side, the other circumstances available in this case though are not important but for the sake of ascertaining their value, it is essential to be discussed.

7. The main stance of prosecution for committing murder of Haleema Bibi was a dispute about existence of first marriage of the accused/appellant whose first wife was also living in the same house and prosecution witnesses claimed that due to such reason deceased usually had quarrels with the accused/appellant but no any material was brought on record with respect to such dispute between the spouses and going to the house of accused/appellant by two witnesses in order to

resolve the issue was also without any substance because neither any call was made by the deceased nor they have heard about any quarrel between the spouses on that day. Prosecution has also not produced any witness who could have supported the fact of quarrel between the spouses nor the investigator has conducted the investigation on this aspect of the matter. Thus, motive in this case remains shrouded in mystery.

8. The medical evidence in this case is also very crucial. Dr. Komal Altaf PW-3 has observed following injury on the person of the deceased: -

1. A firearm **stellate entry wound** was present in the center of forehead about one cm above from nasal bridge (base of nose). 12 cm from right tragus medially and 13 cm from left tragus towards medial side was present. 8 x 5 cm of wound present on the scalp and visible 2 x 1 cm injury on skull. Blacking (sic) was present on skull. Skull bone was fractured and depressed. On skull dissection membranes were damaged. Clotted blood was present. Brain matter was damaged. Single bullet was found on the base of skull. Base of skull fractured.

A stellate (star-shaped) gunshot wound on the forehead can be either suicidal, as the shape is often caused by gases expanding from the firearm's muzzle, which is common in contact wounds, a method used in suicides. The key factors to determine if it was a suicide or not, solely the wound's appearance is not sufficient but also its location, such as the forehead, ***which is a common suicide site***, along with the presence of a weapon, ballistic evidence, and the victim's own history or circumstances. As per literature available on the subject, a stellate wound often suggests that the firearm was in direct contact or very close proximity to the skin when fired. The gases produced by the firing weapon escape through the skin, creating a star-like pattern around the entry point. While not definitive, the forehead is a common site for suicidal gunshot wounds, which is a factor to consider in the overall assessment. This pattern is generally not seen with other types

of gunshot wounds, such as distant or accidental ones. Forensic analysis of the wound can help determine the distance between the muzzle and the skin. The finding of a firearm near the victim is a crucial piece of evidence. A close examination of the skin may reveal an imprint of the firearm's muzzle. The trajectory of the bullet can also help indicate whether the wound was self-inflicted or inflicted by another person. The circumstances and history of the individual are also critical in assessing the possibility of suicide. In short, a stellate wound on the forehead is significant but requires a comprehensive forensic investigation to determine if it was a suicide.

9. In this case when the accused/appellant dared to inform the doctor as well as the investigator, then both were obliged to examine the dead body thoroughly and first duty was to examine the hands of deceased lady so as to find out any gunshot residue (GSR) in the form of soot over it. Not examining the hands by Doctor CW-1, investigator and the doctor who later conducted postmortem examination is a criminal negligence and thereby truth was altered at the cost of slackness or deliberate askance. It was the duty to be discharged even in terms if such GSR was not on the hands of deceased, it could then help to rule out the possibility of suicide to some extent. Place of occurrence was also required to be examined keenly, so as to track any other evidence available at the site, but prosecution agency was not serious to dig out such fact. Thus, it remained an unanswered theory whether, it was a suicide or homicide which creates a doubt in prosecution story and benefit of doubt always leans in favour of accused.

10. An expression in the mind of Court that as to whether a woman can commit suicide with firearm weapon was primarily responded by a book titled “**Simpson’s Forensic Medicine**”, Tenth Edition compiled by Bernard Knight. It is the text of Chapter-8 (Firearm and explosive injuries) at page 114 as under;

“Suicides shoot themselves in ‘sites of election’ which comprise the mouth, the front of the neck, ***the forehead*** or temples, or the front of the chest. Discharges into the temples are usually on the side of the dominant hand, but this is not absolute. People almost never shoot themselves in the eye or abdomen - and naturally not in inaccessible sites such as the back. In Britain and many other countries, women rarely commit suicide with guns and are rarely involved in firearms accidents, so ***there is a useful rule that ‘a shot woman is a murdered woman until proved otherwise.’***”

(Emphasis is supplied)

But the latest study, commented upon committing of suicide by women with firearms and this trend is increasing. An Article in New York Times ⁽¹⁾on “GUN SUICIDES ARE UP AMONG WOMEN” throws light on the facts as under;

“Women are increasingly using guns to die by suicide in the United States, challenging long-held assumptions that they will usually resort to less lethal means, according to data released on Thursday by the Centers for Disease Control and Prevention.

The findings, drawn from federal health data, showed that in 2022, 20 out of every million women used a gun to die by suicide, up from 14 women in 2002. This marks a 43 percent increase. The report also found that suicide rates have risen among women over the past two decades. Experts say there is not a single reason for the shift in how women are dying by suicide, but noted that easy access to guns is a contributing factor. In addition, a 2021 study found that firearm sales increased significantly in 2020 and 2021, and that those who purchased a firearm for the first time during that surge had a higher risk of suicidal thoughts. About half of the first-time buyers were women.”

Similar trend is being seen in Pakistan as per latest news reports, thus, there remains a possibility of suicide by woman with gunshot or firearms. It was on the prosecution to prove that defence prospective is false and afterthought that Haleema Bibi had committed suicide, but it was murder in all probabilities.

¹ (<https://www.nytimes.com/2024/09/26/well/mind/suicide-guns-women.html>)

11. Another aspect of the case was argued by the prosecution in favour of murder theory that doctor has not observed any exit wound on the body of the deceased which shows that it was not a wound with dominant hand by the deceased, but with a fire from a little distance made by the accused/appellant. Firstly, had it been a fire from a little distance it would not have been with description of satellite wound and if such injury had been caused by the accused/appellant surely with tight hand firmly then there was every possibility that bullet would have exited from the back of skull, but when fire is made with friendly hand, its loose control gets penetration of bullet obliquely which causes the bullet to spin in cranial cavity due to ricochet effect and in such situation it will not be exited from the skull. This situation has thoroughly been explained by this Court in a case approved for reporting titled “*BASHIR AHMAD versus The STATE*” (2023 LHC 1090).

12. Though pistol stood recovered on the lead of accused/appellant but it could not found match with the spent shell (C1) collected from the place of occurrence, and PFSA has also not given any opinion with respect to bullet-B1 recovered from the cranial cavity of the deceased. Thus, recovery in this case also does not support to the prosecution version.

13. For what has been discussed above, in the instant case the prosecution has failed to establish the charge against the accused/appellant beyond any shadow of doubt and it is trite that in order to extend benefit of doubt to an accused person, it is not necessary that there should be several circumstances creating doubt, rather one reasonable doubt is sufficient to acquit an accused. Reliance is placed on the cases reported as “*MAQSOOD ALAM and another Versus The STATE and others*” (2024 SCMR 156), “*ABDUL QADEER Versus The STATE*” (2024 SCMR 1146), “*MUHAMMAD IMTIAZ BAIG and another Versus The STATE through Prosecutor General,*

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Punjab, Lahore and another” (2024 SCMR 1191), “*MUHAMMAD HASSAN and another Versus The STATE and others*” (2024 SCMR 1427), “*KHIAL MUHAMMAD Versus The STATE*” (2024 SCMR 1490) and “*MUHAMMAD IJAZ alias BILLA and another Versus The STATE and others*” (2024 SCMR 1507). **Consequently, Criminal Appeal No.47572 of 2023 is allowed** and the accused/appellant is acquitted of the charges. Jamroz Khan (accused/appellant) confined in jail shall be released forthwith if not required in any other case. The case property, if any, shall be disposed of in accordance with law and the record of the trial court be sent back immediately.

14. For the above reasons, criminal revision No.60819 of 2023 stands dismissed.

(Muhammad Amjad Rafiq)
Judge

Approved for reporting.

Judge

Signed on 01.10.2025

M. Umar*